



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 24, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202101119 regarding Police Officer Daniel Mendez, Tax No. 956922 (DADS No. 2022-25970), and Police Officer Kevin Donohue, Tax No. 953824 (DADS No. 2022-25972)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officers Mendez and Donohue will receive Schedule "A" Command Disciplines rather than Schedule "B" Command Disciplines. The failure to offer business cards, whether one or several, during a single police incident justifies only a single penalty, to address the substantiated misconduct.

In this matter, Police Officers Mendez and Donohue participated in the stop of a vehicle and failed to offer business cards to the occupants of the vehicle with whom they interacted. The Police Commissioner acknowledges that the officers had the obligation to offer the individuals their business cards. However, the Police Commissioner has determined that, in the interest of maintaining a balance between punishment, deterrence and remediation, the penalties for failing to offer multiple business cards during a single police

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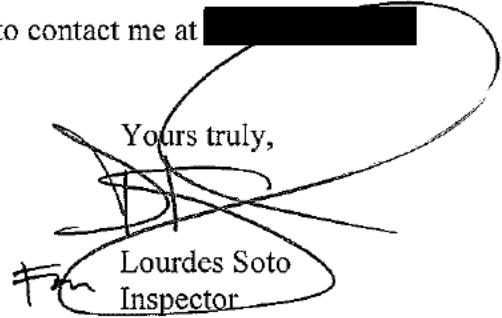
Website: <http://nyc.gov/nypd>

incident should run concurrently, as allowed for under the Disciplinary System Penalty Guidelines.

Therefore, based on the foregoing, the Police Commissioner directs that Police Officer Mendez and Police Officer Donohue be issued a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office